

26PSCV00351 26PSCV00351

County: los-angeles

Division: Civil Law and Motion

Department: 6

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Case Number: 26PSCV00351 Hearing Date: August 13, 2026 Dept: 6

Plaintiff

Neoline, Inc.'s Request for Entry of Default Judgment

Defendant: Piggy Express, Inc.

TENTATIVE RULING

Plaintiff's

request for entry of default judgment is GRANTED in the reduced amount of \$131,271.06.

The Court directs Plaintiff to submit a revised proposed judgment on Judicial Council Form JUD-100 for the Court's review and signature.

BACKGROUND

This

is a payment dispute. On January 29, 2026, plaintiff Neoline, Inc. (Plaintiff) filed this action against defendant Piggy Express, Inc. (Defendant) and Does 1 through 10, alleging causes of action for breach of contract and conversion.

On

May 4, 2026, default was entered against Defendant.

On

June 12, 2026, Plaintiff requested entry of default judgment against Defendant.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

PRELIMINARY ISSUE

To

protect personal privacy and other legitimate interests, parties and their attorneys must not include, or must redact where inclusion is necessary, the following identifiers from all pleadings and other papers filed in the court's public file, whether filed in paper or electronic form, unless otherwise provided by law or ordered by the court:...

(2) Financial
account numbers

If

financial account numbers are required in a pleading or other paper filed in the public file, only the last four digits of these numbers may be used.

(Cal. Rules of Court, rule 1.201, subd.
(a).)

Plaintiff's

default judgment request fails to redact the applicable financial account information. (See Chen Decl., Exs. 2-3, 5.) The Court admonishes Plaintiff to comply with the California Rules of Court going forward.

ANALYSIS

Plaintiff

seeks default judgment against Defendant in the total amount of \$141,525.91, including \$110,985.00 in damages, \$7,030.06 in interest, \$6,999.85 in attorney fees, and \$511.00 in costs. The Court finds Plaintiff's default judgment request largely in order, but finds some problems with Plaintiff's prejudgment interest and attorney fee calculations. First, the contract contains no attorney fee clause. (Chen Decl., Ex. 1.) Plaintiff therefore has no basis for requesting attorney fees. (Code Civ. Proc., § 1033.5, subd. (a)(10).) The Court will deduct the \$6,999.85 requested in attorney fees.

Second, it

is not entirely clear to the Court how Plaintiff calculated the accrued interest portion of Plaintiff's claimed damages. The contract provides that the interest rate is a "fixed annual interest rate to NLI based on the Prime Rate (8.5% annualized as of December 2, 2023), with flowed interest rates adjusted monthly according to the Prime Rate and paid monthly." (Chen Decl., Ex. 1, § III, subd. (e).) The Court finds this language confusing and internally contradictory. A fixed interest rate cannot be adjusted on a monthly basis. It is also unclear what a "flowed interest rate" is. Moreover, Plaintiff's damages calculation shows \$630.00 a month for February and March 2025, but then \$399.00 a month from April 2025 through August 2025. (Chen Decl., Ex. 6.) It is unclear how Plaintiff determined these amounts. Accordingly, the Court will deduct \$3,255.00 in "accrued interest" from Plaintiff's damages calculation.

Third,

Plaintiff contends to have dismissed the Second Cause of Action for conversion, but the only request for dismissal on file dismissed only the Doe defendants from this action. (See Request for Dismissal (6/12/26).)

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is GRANTED in the reduced amount of \$131,271.06. The Court directs Plaintiff to submit a revised proposed judgment on Judicial Council Form JUD-100 for the Court's review and signature.